

26IWUD00066 26IWUD00066

County: los-angeles

Division: Civil Law and Motion

Department: 8

Hearing date: 2026-08-04

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The demurrer is overruled. The complaint states a cause of action for unlawful detainer based on the legal capacity of the Plaintiff as Trustee of the MFA 2022-CHM1 Trust. The Defendant cites no authority for its position that the Plaintiff must allege it is an "express trust," the manner in which the trust was created, or that the trustee was duly appointed and accepted as trustee to state a cause of action for unlawful detainer.

The Defendant shall file an answer only within five days' notice of this ruling.